HITRUST 6175 Main Street
Suite 400
Frisco, TX 75034

September 16, 2024

MERGE
200 E Randolph Street
Suite 3450
Chicago, Illinois 60601-6436

Based upon representation from management as to the accuracy and completeness of information provided, the procedures performed by an Authorized External Assessor to validate such information, and HITRUST's independent confirmation that the work was performed in accordance with the HITRUST® Assurance Program requirements, the following platform, facility, and supporting infrastructure of the Organization ("Scope") meets the HITRUST CSF® v9.3 Risk-based, 2-year (r2) certification criteria:

Platform:

- MERGE Marketing Solution residing at Google Workspaces

Facility:

- Google Workspaces (Data Center) managed by Google Cloud located in Multiple, United States of America

The certification is valid for a period of two years assuming the following occurs. If any of these criteria are not met, HITRUST will perform an investigation to determine ongoing validity of the certification and reserves the right to revoke the Organization's certification.

- Annual progress is being made on areas identified in the Corrective Action Plan(s) (CAPs),
- No data security breach reportable to a federal or state agency by law or regulation has occurred within or affecting the assessed environment,
- No significant changes in the business or security policies, practices, controls, and processes have occurred that might impact its ability to meet the HITRUST Risk-based, 2-year (r2) certification criteria, and
- Timely completion of the HITRUST Interim Assessment for r2 Certification as defined in the HITRUST Assurance Program Requirements.

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HITRUST has developed the HITRUST CSF, a certifiable framework that provides organizations with the needed structure, detail and clarity relating to information protection. With input from leading organizations, HITRUST identified a subset of the HITRUST CSF controls that an organization must meet to be HITRUST Risk-based, 2-year (r2) Certified. For certain HITRUST CSF controls that were not being met, the Organization developed a CAP that outlined its plans for meeting such controls.

HITRUST performed a quality assurance review to ensure that the control maturity scores were consistent with the results of testing performed by the Authorized External Assessor. Users of this letter can refer to the document Leveraging HITRUST Assessment Reports: A Guide for New Users for questions on interpreting this letter and can contact HITRUST customer support at support@hitrustalliance.net. Users of this letter are assumed to be familiar with and understand the services provided by the organization listed above, and what specific services are being used by the user organization.

A full HITRUST Validated Assessment Report has also been issued by HITRUST which can also be requested from the organization listed above directly. Additional information on the HITRUST Assurance Program can be found at the HITRUST website at https://hitrustalliance.net.

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Enclosures (2):

- Assessment Context
- Scope of Systems in the Assessment

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Assessment Context

The assessed entity completed the following tailoring questionnaire to derive this assessment's customized set of HITRUST CSF requirements based on organizational, geographical, technical, and regulatory risk factors.

Assessment Type	
HITRUST Risk-based, 2-year (r2) Security Assessment	
General Risk Factors	
Organization Type	Service Provider (Non-IT)
Entity Type	Healthcare - Business Associate
Geographic Risk Factors	
Geographic Scope of Operations Considered	Multi-State
Organizational Risk Factors	
Number of Records that are currently held	Less than 10 Million Records
Technical Risk Factors	
Is the system(s) accessible from the Internet?	Yes
Is the scoped system(s) (on-premise or cloud-based) accessible by third-party personnel (e.g., business partners, vendors, cloud providers)?	Yes
Does the system(s) transmit or receive data with a third-party?	Yes
Is the system(s) publicly positioned?	No - Merge's system is not publicly positioned.
Number of interfaces to other systems	Fewer than 25
Number of users of the system(s)	500 to 5,500
Number of transactions per day	Fewer than 6,750
Does the scoped environment allow dial-up/dial-in capabilities (i.e., functional analog modems)?	No - Merge's scoped environment does not allow dial-up/dial-in capabilities (i.e., functional analog modems).
Is scoped information sent and/or received via fax machine (i.e., an actual machine, excluding efax or scan to email)?	No - Merge does not send and/or receive scoped information via fax machine (i.e., an actual machine, excluding efax or scan to email).
Do any of the organization's personnel travel to locations the organization deems to be of significant risk?	No - Merge does not allow organizational personnel to travel to locations the organization deems to be of significant risk.
Are hardware tokens used as an authentication method within the scoped environment?	No - Merge does not use hardware tokens as an authentication method within the scoped environment.
Does the organization allow personally owned devices to connect to scoped organizational assets (i.e., BYOD - bring your own device)?	No - Merge does not allow personally-owned devices to connect to scoped organizational assets (i.e., BYOD - bring your own device).

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Are wireless access points in place at any of the organization's in-scope facilities?	No - Merge does not install wireless access points at any of the organization's in-scope facilities.
Does the organization perform information systems development (either in-house or outsourced) for any scoped system, system service, or system component?	No - Merge does not perform information systems development (either in-house or outsourced) for any scoped system, system service, or system component.
Does the organization use any part of the scoped systems, system components, or system services to sell goods and/or services?	No - Merge does not use any part of the scoped systems, system components, or system services to sell goods and/or services.
Does the organization allow the use of electronic signatures to provide legally binding consent within the scoped environment, e.g., simple or basic electronic signatures (SES), advanced electronic or digital signature (AES), or qualified advanced electronic or digital signatures (QES)?	No - Merge does not allow the use of electronic signatures to provide legally binding consent within the scoped environment, e.g., simple or basic electronic signatures (SES), advanced electronic or digital signature (AES), or qualified advanced electronic or digital signatures (QES).
Is scoped information sent by the organization using courier services, internal mail services, or external mail services (e.g., USPS)?	No - Merge does not send scoped information using courier services, internal mail services, or external mail services (e.g., USPS).
Is any aspect of the scoped environment hosted on the cloud?	Yes
Does the system allow users to access the scoped environment from an external network that is not controlled by the organization?	Yes

Regulatory Risk Factors (Optional)
No regulatory risk factors (i.e. additional authoritative sources such as NIST SP 171) were included in this HITRUST CSF assessment

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Scope of the Assessment

Company Background

MERGE is a unified creative agency with locations in Boston, Atlanta, Chicago, Kansas City, Denver, and New York. It expertly combines strategy, creativity, media, and technology to propel clients' brands and businesses forward. Established in 1986 as Partners & Simons, MERGE Boston is renowned for its expertise in the healthcare and financial services sectors. In 2012, Partners & Simons was acquired by Myelin Health Communications, a Baird Capital company. The agency was re-branded as MERGE in 2018 following its purchase by Keystone Capital.

In-scope Platform

The following table describes the platform that was included in the scope of this assessment.

MERGE Marketing Solution	
Description	MERGE is a creative and media agency offering clients an uncommon depth of expertise in both strategy and technology. MERGE creates integrated communications and design experiences across all media to help clients build trust and drive business at every point of contact. Our knowledge and work span fluidly across strategy, creative, web design and development, media, analytics, and more with Google Workspace Enterprise and Entra ID.
Application(s)	N/A
Database Type(s)	N/A
Operating System(s)	Windows, MAC OS
Residing Facility	Google Workspaces
Exclusion(s) from Scope	N/A

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In-scope Facilities

The following table presents the facilities that were included in the scope of this assessment.

Facility Name	Type of Facility	Third-party Managed?	Third-party Provider	City	State	Country
Google Workspaces	Data Center	Yes	Google Cloud		Multiple	United States of America

Services Outsourced

The following table presents outsourced services relevant to the scope of this assessment. The "Consideration in this Assessment" column of this table specifies the method utilized for each service provider relevant to the scope of this r2 assessment. HITRUST requires the inclusive method must be used on HITRUST r2 validated assessments. Under the Inclusive method, HITRUST CSF requirements performed by the service provider are included within the scope of the assessment and addressed through full or partial inheritance, reliance on third-party assurance reports, and/or direct testing by the external assessor.

Third-party Provider	Relevant Service(s) Provided	Consideration in this Assessment
Microsoft Azure	Azure hosts Active Directory and the platform for SSO.	Included
Google Cloud	Cloud service provider responsible for environmental security and physical infrastructure.	Included
Rapid 7	Security Operations Center responsible for triaging logs.	Included

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Overview of the Security Organization

The Information Security Program is seamlessly integrated into the Information Technology operations at MERGE, with four essential roles: the Director of Information Security, Privacy Officer, Senior Vice President of Information Technology, and the Executive Leadership Team. Leading the program, the Director of Information Security is responsible for the design, testing, enforcement, and monitoring of security controls. In collaboration with the Director, the Privacy Officer ensures the confidentiality of the company's accessed or stored records.

The Senior Vice President of Information Technology works closely with the Director to uphold security policy compliance and assists in drafting procedures to ensure a secure and standardized IT workflow across the agency. The Executive Leadership Team (ELT), which includes the Chief of Operations, President, Executive and Senior Vice Presidents of MERGE practice areas and shared operations, provides leadership and strategic guidance.

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